

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

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LAW AND MOTION TENTATIVE RULINGS

**DATE: June 24, 2026 TIME: 1:30 P.M.
PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV432129	Bobadilla v. Loan Factory, Inc. (Class Action)	See Line 1 for tentative ruling.
LINE 2	24CV439064	Castillo v. Hain Celestial Group, Inc. dba Earth's Best	See Line 2 for tentative ruling.
LINE 3	25CV478939	Edward Carlos, II et al vs Restoration Hardware, Inc. et al (Class Action / PAGA)	See Line 3 for tentative ruling.
LINE 4	25CV479834	Ashish Chordia et al vs Chris Jo et al	Unopposed application for admission pro hac vice of attorney Levin is GRANTED. No appearance necessary. Court will sign Proposed Order. Case remains on calendar for Case Management Conference at 2:31 p.m.
LINE 5	25CV481429	Julianne Spitler vs Match Group, Inc. et al	See Line 5 for tentative ruling. Unopposed motion to dismiss is GRANTED and Court will sign proposed Order. No appearance necessary.
LINE 6	25CV483219	Herlinda Estrada et al vs Chattem, Inc., individually, as alter ego of, and as successor-in-interest, et al.	Calendar Lines 6 – 19: See Line 6 below for tentative rulings.
LINE 7			
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name: Derek Daniel Bobadilla, on behalf of himself and others similarly situated v.
Loan Factory, a California Corporation, et al.
Case No.: 24CV432129

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on June 24, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. Introduction

This is a class action for misappropriation of likeness brought by plaintiff Derek Daniel Bobadilla (“Plaintiff”) against defendant Loan Factory, Inc. (“Defendant”). The complaint asserts causes of action for: (1) violation of Civil Code section 3344 (unauthorized commercial use of name, voice, signature, photograph or likeness); (2) common law misappropriation of name and likeness; (3) violation of Business and Professions Code section 17200, et seq. (unfair competition); and (4) unjust enrichment. On October 22, 2024, in docket 24CV450091, Plaintiff filed a separate representative action complaint against defendants asserting a sole cause of action for civil penalties under the private attorneys general act (“PAGA”). The Court granted Plaintiff’s motion for class certification via written order on June 11, 2026.

Now before the Court is Plaintiff’s motion to compel compliance with a deposition subpoena served on non-party Brian Stevens (“Stevens”). Defendant has filed a response to the motion and Plaintiff has filed a reply.¹

II. Legal Standard

“In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must

¹ The Court declines to consider the declaration and request for judicial notice Plaintiff filed with his reply. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38 [“The general rule of motion practice . . . is that new evidence is not permitted with reply papers.”]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 [same]; *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [same]; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 783 [points raised in the first time in reply should not be considered].)

generally serve a deposition subpoena. (*Id.*, § 2020.010, subd. (b).)” (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1030 (*Board of Registered Nursing*).)

If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena under section 2025.480. (See Code Civ. Proc., §§ 1987.1, 2025.480; see, generally *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123 (*Unzipped*) [applying section 2025.480 to a business records subpoena directed to a nonparty]; *Board of Registered Nursing, supra*, 59 Cal.App.5th 1011 [same].)

Code of Civil Procedure section 2025.480, subdivision (a) provides, “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Code of Civil Procedure section 2025.480, subdivision (i) provides, “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition.”

The moving party must show good cause for the documents sought. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224.)

III. Merits of the Motion

Defendant is a licensed California mortgage brokerage. Defendant’s website included a “Find a Loan Officer” feature that displayed individual profile pages, each bearing a loan officer’s name, photograph, and Nationwide Multistate Licensing System (NMLS) identification number. Plaintiff alleges that Defendant included on these pages the profiles California-licensed loan officers, none of whom was employed by or affiliated with Loan Factory and none of whom consented to the use. According to Plaintiff, Stevens runs “The National Real Estate Post,” which posts daily videos related to the real estate industry. Via that platform, Stevens published a video entitled, “Identity Theft, Big Trouble Loan Factory,” which Plaintiff contends “was highly critical of Loan Factory and its CEO, Thuan Nguyen (‘Nguyen’), and claimed to have taken screenshots of all the loan officers improperly posted on the webpage.” (Motion, p. 6:9-

11.) After the video was posted, Stevens spoke to Nguyen and the video was taken down or made private. Stevens now works for Defendant.

Plaintiff noticed Stevens's deposition but he failed to appear as scheduled. On December 26, 2025, Stevens sat for his deposition but he did not answer certain questions. Stevens never objected to the subpoena and filed no opposition to the instant motion. The subpoena requested

"All DOCUMENTS RELATED TO the BIG TROUBLE LOAN FACTORY video, including, but not limited to: all video files; all footage captured, whether ultimately used or not used; all COMMUNICATIONS with any PERSON in preparation of the video; all notes, the BIG TROUBLE LOAN FACTORY video itself; etc." Plaintiff contends that, in his video, Stevens stated that he had screen shots of the information of unaffiliated loan officers appearing on Defendant's website. Defendant removed from its website the information regarding other unaffiliated loan officers after the video was posted and thus, the screenshots are the best available evidence in support of Plaintiff's claims. Plaintiff contends that Stevens did not produce the screenshots despite repeated requests. Plaintiff has shown good cause for the screenshots he seeks.

Plaintiff also seeks continued deposition of Stevens on the following topics: (1) questions pertaining to the contents of the Big Trouble Loan Factory Video, (2) questions pertaining to communications with Thuan Nguyen in advance of Stevens's deposition, and (3) questions pertaining to communications with Thuan Nguyen at the time the Big Trouble Loan Factory Video was published, and Stevens' decision to take down the video. The court finds these topics to be relevant to the allegations in this case.

Defendant contends that Plaintiff had the opportunity to depose Stevens and to ask him the questions he seeks to ask him in a continued deposition. But, Plaintiff argues that Stevens produced some documents 40 minutes before his deposition and some after the deposition had occurred. Specifically, Plaintiff argues that it did not receive the video and text communications between Stevens and Nguyen from around the time the video was posted until after the deposition had completed. Thus, Plaintiff did not have all of the information he has

currently at the time of the deposition and did not have the opportunity to question Stevens fully.

Defendant argues that Stevens informed Plaintiff's counsel that was suffering from health issues at the time of the deposition and that the continued deposition will be unduly burdensome for him. Defendant requests that the court order that Stevens produce a declaration under oath indicating whether he possesses the documents Plaintiff seeks. Defendant asserts that Stevens should be given the opportunity to respond in writing regarding whether the requested documents exist. While the court is sympathetic to any health issues Stevens may be suffering, Stevens was served with the motion and thus, he had the opportunity to respond in writing and inform the court if the requested items did not exist.

The motion to compel compliance is GRANTED.

VII. Conclusion

The motion to compel compliance is GRANTED. Plaintiff is ordered to meet and confer with Stevens to schedule his continued deposition so that Plaintiff may ask questions on the topics identified in Plaintiff's separate statement. Stevens is ordered to produce all responsive documents within 60 days of the date of the Court's order on this matter.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 2

Case Name: *Rebeca Castillo v. Hain Celestial Group, Inc.*

Case No.: 24CV439064

This is an action for alleged mislabeling of products intended for children by Defendant Hain Celestial Group, Inc. (“Defendant” or “Hain Celestial”). Before the Court is Defendant’s motion to stay this action pending resolution of an appeal in the federal action entitled *Howard v. Hain Celestial Group, Inc.* (“*Howard*”). Plaintiff Rebeca Castillo (“Plaintiff”) opposes the motion. As discussed below, the Court DENIES Defendant’s motion.

I. BACKGROUND

A. Factual

Plaintiff alleges that Defendant misbrands its baby and toddler food products with nutrient content claims on the product packages that are prohibited by the Food and Drug Administration (“FDA”). (Complaint, ¶ 2.) According to Plaintiff’s operative Complaint, Defendant manufactures, distributes, markets, advertises, and sells a variety of baby and toddler food products under the brand name “Earth’s Best” (the “Products”). (*Id.*, ¶ 11, Exhibit A.) Defendant categorizes its food products on its website into two groups: 1) Infant & Baby Foods; and 2) Toddler Foods. (*Id.*, ¶ 13.) Defendant defines “toddler” to be a child under two, and is aware that “toddlers” is commonly understood by parent-consumers to mean that age range, while the Centers for Disease Control (“CDC”) defines the term as “1-2 years of age.” (*Id.*, ¶¶ 16-18.) Defendant intends that its products be used by children under 2 and, for example, utilizes Sesame Street characters to make the products more appealing to that demographic. (*Id.*, ¶¶ 22-29.) Defendant also places its Products in the baby food aisle in the grocery store so that they will be marketed to and purchased by parents of children under the age of two. (*Id.*, ¶ 40.)

At least some of the Products include the language “For ages 2 and up” or a similar statement, in small font above the nutrition facts panel on the *back* label of the Products, but no statement on the front or in proximity to the nutrient content claims on the front label to alert consumers to view the disclaimer on the back and understand that these claims are made only for purchases to feed children age two *and over*. (Complaint, ¶ 46.)

Plaintiff alleges that Defendant’s marketing and labeling of the Products violates State and Federal food labeling laws- particularly 21 C.F.R. § 101.13, subd. (b)(3) and California Health & Safety Code §§ 110600 et seq.²- because they are intended specifically for children less than two years of age and the Products’ labels contain express nutrient content claims. Under these laws, no nutrient content claims may be made on food intended specifically for use by infants and children under 2. (Complaint, ¶¶ 55, 56, 65, 66, 69.)

B. Procedural

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint on May 15, 2024, which asserts the following causes of action: (1) unlawful, unfair and fraudulent trade practices in violation of Business & Professions Code § 17200 et seq. (the “UCL”); and (2) declaratory relief.

In January 2022, the plaintiff in *Howard*- represented by Plaintiff’s counsel here- filed a putative class action against Hain Celestial in the Northern District of California alleging that the company “misbrands its baby and toddler food products with nutrient content claims on the product packaging that the Food and Drug Administration (‘FDA’) strictly prohibits,” particularly 21 C.F.R. § 101.13, subdivision (b)(3). (Declaration of Alexander M. Smith in Support of Motion to Stay Proceedings (“Smith Decl.”), ¶ 2, Ex. 1.) The plaintiffs asserted

² The requirements of the federal Food, Drug & Cosmetic Act (“FDCA”), and its labeling regulations, including those set forth in 21 C.F.R. § 101, were adopted by the California legislature in the Sherman Food Drug & Cosmetic Law (the “Sherman Law”) (Cal. Health & Safety Code, §§ 110100).

claims for (1) violation of the California Consumer Legal Remedies Act (“CLRA”) (Civ. Code, § 1750, et seq.), (2) false advertising (Bus. & Prof. Code, § 17500, et seq.); (3) common law fraud, deceit and/or misrepresentation; (4) violation of the UCL; and (5) unjust enrichment. In February 2024, the Court (Hon. Chhabria) denied the plaintiffs’ motion for class certification, and they proceeded to litigate their individual claims.

After fact discovery concluded, Hain Celestial moved for summary judgment. On February 5, 2025, the Court issued an order granting Hain Celestial’s motion and entered judgment in the company’s favor on February 22, 2025. (Smith Decl., ¶ 5.) Relying on language from the FDA’s final rule, Judge Chhabria found that 21 C.F.R. § 101.13(b)(3) prohibits nutrient content claims only on products intended *primarily* for children under two. (See *Howard v. Hain Celestial Grp., Inc.* (N.D. Cal. Feb. 5, 2025) 2025 U.S. Dist. LEXIS 21091.) He also concluded that the plaintiffs failed to submit evidence that the products were intended primarily for children under two, as would be required to establish a predicate violation of 21 C.F.R. § 101.13(b)(3)—and, by extension, a violation of the UCL’s “unlawful” prong. (See *Ibid.*) The plaintiffs then appealed the summary judgment order, as well as the Court’s prior order denying class certification. The appeal is fully briefed, and according to Defendant, the Ninth Circuit has indicated that it will hold argument on the appeal this July or August.³ (*Id.*, ¶ 6, Ex. 3.)

II. MOTION TO STAY PROCEEDINGS

A. Legal Standard

A court ordinarily has inherent power, in its discretion, to stay proceedings when a stay will accommodate the ends of justice. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141.) “As the court in *Landis v. North American Co.* (1936) 299 U.S. 248, 254, 57 S.Ct. 163, 81 L.Ed.

³ According to Defendant, if oral argument is held in July or August 2026, an opinion is likely to be issued by the end of the year. (See Smith Decl., ¶ 7, Ex. 4 [table from Administrative Office of the U.S. Courts reflecting an average of 3.9 months from oral argument to a final decision in the Ninth Circuit].)

153 explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’ ” (*Ibid.*)

“Granting a stay in a case where the issues in two actions are substantially identical” is “a matter addressed to the sound direction of the trial court.” (*Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 746 (*Thomson*); see also *Simmons v. Superior Court* (1950) 96 Cal.App.2d 119, 123.) Specifically, “when a federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action.” (*Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.* (1993) 15 Cal.App.4th 800, 804 (*Caiafa*).) The stay is justified by the principle of comity. (See *Gregg v. Superior Court* (1987) 194 Cal.App.3d 134, 136 (“*Gregg*”).)

“In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.” (*Farmland Irrigation Co. v. Dopplmaier* [(1957)] 48 Cal.2d [208,] 215 [(“*Farmland*”)]). The California Supreme Court also has isolated another critical factor favoring a stay of the state court action in favor of the federal action[:] ... the federal action is pending in California [and] not some other state. (*Thomson v. Continental Ins. Co.*, *supra*, 66 Cal.2d at p. 747.) (*Caiafa*, *supra*, 15 Cal.App.4th at p. 804.)

B. Discussion

In its motion, Hain Celestial maintains that this action should be stayed pending the Ninth Circuit’s resolution of the appeal in *Howard* because summary judgment in the instant action “will largely hinge on the meaning of 21 C.F.R. § 101.13(b)(3)” given the legal theory advanced by plaintiffs in *both* actions that the products at issue are “misbranded” because they

contain nutrient content claims that 21 C.F.R. § 101.13(b)(3) “strictly prohibits,” and thus the Ninth Circuit will “inevitably address” the meaning of this regulation in deciding the appeal. Defendant acknowledges that whatever decision is made by the Ninth Circuit is not binding on this Court, but assert that it will be “persuasive and entitled to great weight.” (Reply at 7:15, quoting *Etcheverry v. Tri-Ag Serv., Inc.* (2000) 22 Cal.4th 316, 320.) Defendant continues that a stay will conserve party and judicial resources by ensuring that the parties have the benefit of the Ninth Circuit’s decision when briefing summary judgment in this action, and will also reduce the possibility of inconsistent rulings, which would be an especially problematic outcome because Hain Celestial would have no guidance as to the legality of its labeling, thereby undermining Congress’s goal of creating a “uniform federal scheme of food regulation.” (*Reese v. Odwalla, Inc.* (N.D. Cal. 2014) 30 F.Supp.3d 935, 939.) Hain Celestial lastly asserts that Plaintiff would not suffer any prejudice as a result of a stay as she has expressly alleges that she “will never buy the Products again under any circumstances.” (Complaint, ¶ 89.)

In her opposition, Plaintiff emphasizes that whatever decision the Ninth Circuit makes will not bind this Court and insists that the factual record in this case differs from that in *Howard*, explaining that Hain Celestial produced over 30,000 pages of documents in this action that were not produced in the federal action. She further asserts that a stay will not conserve resources because, as fact and expert discovery is closed and Hain Celestial requested a stay on the eve of filing a motion or summary judgment in this case, the majority of work in this action is already done. Finally, she notes that the Ninth Circuit’s opinion will not necessarily end the *Howard* plaintiffs’ appeal- the Court of Appeal may remand to the district court for relevant factual findings, and either party may petition for a rehearing *en banc* or file a writ of certiorari to the United States Supreme Court.

After consideration of the relevant factors, the Court declines to stay this action. While it is true, as Hain Celestial urges in its reply, that “trial courts have inherent power to stay trials awaiting final appellate resolution of related actions that might conclusively determine all or some of the issues in the stayed action” (see Reply at 5:1-2, quoting *Koch-Ash v. Superior*

Court (1986) 180 Cal.App.3d 689, 696), the Ninth Circuit’s eventual opinion in *Howard* will not necessarily be “conclusive” on the issues in this action as that opinion will not be binding on the Court and this case involves claims predicated on California’s Sherman law, a state regulation whose interpretation is a matter of state law that this Court is equipped to determine. (See *Kopp v. Fair Pol. Practices Com.*, (1995) 11 Cal. 4th 607, 620.)

There is also nothing before the Court which suggests that this action was designed solely to harass Defendant, and Hain Celestial has not established that the rights of the parties in this action “can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.” (*Farmland, supra*, [(1957)] 48 Cal.2d at 215.) Finally, as Plaintiff argues in her opposition, the issuance of an opinion by the Ninth Circuit at some unknown point in the future might not necessarily end the *Howard* appeal, and therefore it is unclear how long this action could be stayed and Plaintiff delayed from litigating her claims. Given the foregoing, Defendant’s motion to stay this action is DENIED.

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Calendar Line 3

Case Name: *Carlos II, et al. v. Restoration Hardware, Inc. et al.*
Case No.: 25CV478939

This is a putative and representative action arising from alleged wage and hour violations. Defendants Restoration Hardware, Inc., RH Which Will Do Business in California as Restoration Hardware Holdings, Inc., and RH CA Hospitality, LLC (collectively, “Defendants” or “RH”) move for an order compelling plaintiff Edward Carlos II (“Plaintiff”) to arbitrate his individual claims, dismissing the class claims, and staying the non-individual Private Attorneys General Act (“PAGA”) claims. For the reasons discussed below, the Court GRANTS the motion.

I. Background

According to the operative First Amended Complaint (“FAC”), Defendants employed Plaintiff to work as a server at their RH Firehouse Grill at Montecito restaurant located in Santa Barbara, California. (FAC, ¶ 4.) The FAC pleads eleven causes of action, comprised of eight wage-and-hours claims under the Labor Code, a PAGA claim, and two claims under the Unfair Competition Law.

Defendants present evidence that Plaintiff electronically signed a “Mutual Agreement to Binding Arbitration of Claims | California” during his onboarding. (Tobola Decl., ¶¶ 5 –6, Ex. D (the “Agreement”).) Plaintiff signed the Agreement on November 15, 2024, through RH’s secure Oracle HCM portal. The Agreement bears the RH mark as well as the signature of Sandy Pilon, RH’s Chief People & Values Officer. By its terms, the Agreement broadly covers any dispute arising out of or relating to the plaintiff’s employment, including statutory claims and claims against affiliates and alleged joint employers.

The Agreement is governed by the Federal Arbitration Act and calls for arbitration before JAMS by a retired California Superior Court judge near where the plaintiff worked. It also requires a written and reasoned award and requires the Company to pay the arbitrator’s fees and costs. The Agreement also contains a class-action waiver, a representative-action waiver that applies “[t]o the extent allowable under applicable law,” and a severability clause.

II. Legal Standard

On a motion to compel arbitration, the moving party bears the burden proving the existence of a valid arbitration agreement by a preponderance of the evidence. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 (*Pinnacle*).) The court treats an arbitration agreement as any other contract when deciding whether an agreement was informed or is enforceable. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 [“court should apply the same procedural rules that they apply to any other contract”].)

The moving party may meet its initial burden by attaching a copy of the purported agreement, and if the signature is challenged, the moving party must authenticate it; a declarant’s failure to recall signing does not by itself create a triable dispute. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1059–1061; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218–219.)

III. Discussion

A. Existence of a Valid Agreement to Arbitrate

Plaintiff first argues that no valid arbitration agreement exists because the document refers to the employer only as “the Company” and does not name any of the Defendants. (Opposition, pp. 5:5–6:24.) The Court is not persuaded. California law requires only that the parties be reasonably identifiable, not that each corporate entity be listed by full legal name. (*Oberstein v. Live Nation Entertainment, Inc.* (9th Cir. 2023) 60 F.4th 505, 510–511; Civ. Code, § 1558.) Here the identification is plain because the agreement bears the RH mark and was signed by an RH officer, it was delivered through RH’s onboarding portal for Plaintiff’s RH employment, notice under the agreement runs to RH’s legal department at the Restoration Hardware corporate address, and Plaintiff’s own offer letter defines “the Company” as Restoration Hardware, Inc. and its affiliates.

Plaintiff points to *Flores v. Nature's Best Distribution, LLC* (2016) 7 Cal.App.5th 1 (*Flores*) in arguing that the arbitration clause is ambiguous and thus invalid. *Flores* is distinguishable because, there, the employer left the signature line blank and nothing in the record identified the contracting company. (*Id.* at p. 9.) The rule that an agreement is construed against the drafter does not change the result in this case because that rule applies only when ambiguity remains after the ordinary rules of interpretation are applied, and the Court finds little if any ambiguity here. (Civ. Code, §§ 1643, 1654.)

Plaintiff further asserts that he never saw the arbitration agreement, never saw a button to open it, and does not recall signing it. (Plaintiff's Decl., ¶¶ 6–8.) Nevertheless, the Court finds that the defendants have authenticated the signature. Defendants' records show that the plaintiff accessed a secure, password-protected portal known only to him, that he completed a separately titled and "Required" task called "Binding Arbitration - CA," and that he could complete that task only by entering his legal name and email and clicking "Done." (Tobola Decl., ¶¶ 6–10.) A party who does not recall signing, or who did not read what they signed, is still bound. (*Pinnacle, supra*, 55 Cal.4th at p. 236; *Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 710.) In this case, Plaintiff does not claim forgery or deny that the signature is his. His consumer "sign-in-wrap" authorities are inapposite because this case involves a secure employment portal that presented a discrete, required, and titled arbitration task with an express instruction to view the document before signing.

Accordingly, the Court finds that the parties formed a valid agreement to arbitrate.

B. Unconscionability

Plaintiff further argues that the Agreement is unenforceable because it is unconscionable. (Opposition, pp. 6:25–14:24.) Unconscionability has a procedural element and a substantive element, and both must be present, though they are weighed on a sliding scale. (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125–130.) Plaintiff bears the burden of establishing both elements, and he has not carried it here.

1. Procedural Unconscionability

Plaintiff's showing of procedural unconscionability is modest. The Agreement was a mandatory condition of employment presented on a standardized form, so some procedural unconscionability is present because it is an adhesive contract. Nevertheless, a contract of adhesion alone is not enough to establish unconscionability. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1244.) Plaintiff explains that he completed his onboarding on his personal cell phone, that he was not told he was waiving his rights, and that he did not understand arbitration. (Plaintiff's Decl., ¶¶ 5, 9–10.) Plaintiff relies upon *Hasty v. American Automobile Assn.* (2023) 98 Cal.App.5th 1041 (*Hasty*) in arguing there is a high degree of procedural unconscionability due to the adhesive nature of the Agreement. (Opposition, pp. 1:24–28, 8:10–9:16.)

Hasty is distinguishable because it turned on a developed record in which the signature page did not tie the acknowledgment to the arbitration agreement and several terms were independently unlawful. (*Hasty, supra*, 98 Cal.App.5th at pp. 1058–1063.) In this case, the arbitration task was separately titled, was marked “Required,” and Defendants’ onboarding portal system instructed Plaintiff to click “View Document” before signing. (Tobola Decl., ¶¶ 6–10.)

Accordingly, the Court finds the degree of procedural unconscionability to be modest and not significant.

2. Substantive Unconscionability

Plaintiff's showing of substantive unconscionability fails to persuade the Court. The plaintiff challenges five terms, and none is unconscionable on this record. (See Opposition, pp. 10:1–14:24; Reply, pp. 10:19–13:12.) The reference to “harassment” does not make the agreement overbroad, because this case pleads no sexual-harassment or sexual-assault claim, and the federal Ending Forced Arbitration Act is therefore not triggered. The punitive-damages clause bars such an award only “except where permitted by statute,” which preserves rather than waives any statutory remedy. The fee provision is not one-sided because the arbitrator is expressly empowered to award attorney's fees and costs to the extent available under law,

which preserves the plaintiff's statutory fee rights and renders *Fisher v. MoneyGram International, Inc.* (2021) 66 Cal.App.5th 1084, 1106, distinguishable. The 30-day invoice term governs the timing of the employer's payments and does not shift any arbitration-specific cost onto Plaintiff, whose contribution is capped at the court filing fee.

While Plaintiff's argument concerning the representative-action waiver may be his strongest, that too fails on this record. (Opposition, pp. 11:17–13:8; Reply, pp. 11:25 – 12:8; Notice of Motion and Motion, p. 2:2–9.) A wholesale, pre-dispute waiver of representative PAGA claims is unenforceable. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 384.) But the waiver here is expressly limited to what is “allowable under applicable law,” the agreement assigns the enforceability question to a court rather than the arbitrator, and the agreement provides that, if the representative waiver is invalid, those claims proceed in court after the arbitrable claims are arbitrated. Defendants' motion does not seek to enforce a wholesale PAGA waiver, and the Court does not enforce any such waiver. As such, the provision is not the unlawful blanket waiver condemned in *Iskanian*, and any surplus language is severable under the agreement's severability clause and the strong preference for severance. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 514–518; *Santana v. Studebaker Health Care Center, LLC* (2026) 120 Cal.App.5th 1, 20.)

Accordingly, the Court finds that Plaintiff has failed to show more than a minimal degree of substantive unconscionability, if any. Having shown only a modest degree of procedural unconscionability and a minimal degree of substantive unconscionability, Plaintiff has not met his burden of establishing unconscionability.

C. Scope of Agreement to Arbitrate

Plaintiff's individual claims fall within the agreement's broad scope and are compelled to arbitration, and his PAGA cause of action is divisible. The individual PAGA claim is arbitrable and is compelled, and the representative PAGA claim is not waived and remains before this court. (*Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639; *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1121 (*Adolph*).) The class-action waiver is

enforceable, and Plaintiff does not separately contest it, so the putative class claims are dismissed. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 348–352.)

A stay of the representative PAGA claims is appropriate because the arbitration will determine whether the plaintiff is an “aggrieved employee” with standing to pursue the representative claims. (Code Civ. Proc., § 1281.4; *Adolph, supra*, 14 Cal.5th at pp. 1123–1124.) The non-employer RH entities may enforce the agreement because the FAC alleges they are joint employers and the claims against them are intertwined with Plaintiff’s employment. (*Garcia v. PEXCO, LLC* (2017) 11 Cal.App.5th 782, 785–787; *Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111, 122–124.)

IV. Conclusion

For the reasons stated, the Court GRANTS Defendants’ motion. Plaintiff’s individual claims, including the individual component of the PAGA claim, are compelled to arbitration. The putative class claims are dismissed without prejudice. The non-individual, representative PAGA claims are stayed, and the action is stayed pending the completion of the arbitration.

Case Management Conference at 2:30 p.m. is VACATED.

Further Case Management Conference for review pending arbitration is set on February 3, 2027 at 2:30 p.m.

The prevailing party shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 4

Case Name:

Case No.:

Calendar Line 5

Case Name: *Spitler v. Match Group, Inc. et al.*
Case No.: 25CV481429

This is a putative class action alleging that defendants Match Group, Inc. and PlentyOfFish Media ULC (collectively, “Defendants”) violated the Unruh Civil Rights Act (Civil Code, § 51 *et seq.*) by providing different services or pricing based on a user’s age. Plaintiff Julianne Spitler now seeks dismissal of her individual and putative class claims without prejudice. The Court previously vacated the April 1, 2026 Case Management Conference and directed counsel to submit a proposed order of dismissal. For the reasons stated below, the Court GRANTS the motion to dismiss the action without prejudice.

I. Legal Standard

A dismissal of an entire class action requires court approval and must be accompanied by a declaration setting forth the facts and stating whether consideration, direct or indirect, has been given for the dismissal. (Cal. Rules of Court, rule 3.770(a).) A court may rule on the request without a hearing. (*Id.*, rule 3.770(b).) The action may be dismissed without notice to the class members if the court finds that the dismissal will not prejudice them. (*Id.*, rule 3.770(c).)

II. Discussion

Here, the request for dismissal complies with California Rules of Court, rule 3.770. It is supported by the declaration of Plaintiff’s counsel, Charles R. Toomajian III, who states that no consideration, direct or indirect, has been or is being provided to Plaintiff or her counsel in connection with the dismissal. (Toomajian Decl., ¶ 3.) The declaration further establishes that Plaintiff has elected not to pursue her claims at this time and has not served the summons or complaint on either defendant. (*Id.*, ¶¶ 4–5.)

The Court finds that the dismissal will not prejudice the putative class members. No class has been certified, and no notice of the pendency of the action has been sent to the putative class. There is also no indication of media coverage or other publicity on which absent

members might have relied. The dismissal is without prejudice and has no binding or dispositive effect on the claims. Based on these facts, the Court finds that notice to the putative class is unnecessary, and the Court exercises its discretion to dispense with it.

III. Conclusion

For the reasons stated, the Court GRANTS Plaintiff's request for dismissal. The action is dismissed without prejudice as to the named Plaintiff and the putative class. The Court will sign the proposed Order of Dismissal submitted. Notice to the putative class is not required. The June 24, 2026 Case Management Conference is VACATED.

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Calendar Lines 6 – 19

Case Name: *Herlinda Estrada et al. v. Chattem Inc. et al.*
Case No.: 25CV483219

This is a complex asbestos personal-injury action. Eleven opposed matters are now before the Court. Three are motions to quash service of summons due to lack of personal jurisdiction. Four are demurrers to the third cause of action for fraud, and four are motions to strike the allegations supporting punitive damages. Having considered the moving papers, the oppositions, and the replies, the Court makes the following rulings.

1. The Court GRANTS the motions to quash brought by Mineral Technologies, Inc. and Specialty Minerals Inc.
2. The Court DENIES the motion to quash brought by PTI Union, LLC.
3. The Court OVERRULES the demurrers brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.
4. The Court DENIES the motions to strike brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.

I. Background

Plaintiff Herlinda Estrada has malignant pleural mesothelioma, and she alleges it was caused by cumulative exposure to asbestos in cosmetic talc, including the store-brand talcum powder products sold by four retailer defendants and the talc supplied or processed by other defendants. Her husband sues for loss of consortium. The Court granted Plaintiffs' motion for trial preference and set trial for September 14, 2026. The Court directed that the pleading motions be advanced and heard together so that the pleadings are settled well before trial.

A group of three defendants challenge this court's jurisdiction over them in this action, contending their contacts with the State and their connections to Plaintiffs' claims are too attenuated.

The four demurring retailer defendants challenge the Complaint's third cause of action only. The third cause of action is for fraud and pleads four separate theories: fraudulent misrepresentation; fraudulent concealment; conspiracy to commit fraudulent misrepresentation;

and conspiracy to commit fraudulent concealment. (Complaint, pp. 102–105.) The same four defendants also move to strike the Complaint’s allegations of malice, oppression, and fraud in support of its prayer for punitive damages. (*Id.* at pp. 106.)

II. The Motions to Quash Service of Summons

A motion to quash tests the Court’s power over the defendant. (Code Civ. Proc., § 418.10.) “California courts may exercise personal jurisdiction on any basis consistent with Constitutions of California and the United States. [Citation.]” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268.) When a nonresident defendant moves to quash, the plaintiff must prove facts justifying the exercise of jurisdiction by a preponderance of the evidence. (*Id.* at p. 273.) The court does not presume its own power, and conclusory assertions of contact with the forum do not suffice. (*Ibid.*)

General, all-purpose jurisdiction reaches only a defendant that is essentially at home in the State; for a corporation, this is ordinarily its State of incorporation or its principal place of business. (*Daimler AG v. Bauman* (2014) 571 U.S. 117, 137 (*Daimler*).) Specific jurisdiction is narrower and depends upon the claims alleged. It requires that the defendant has purposefully availed itself of the forum, that the plaintiffs’ claims arise out of or relate to those forum contacts, and that the exercise of jurisdiction comport with fair play and substantial justice. (*Bristol-Myers Squibb Co. v. Superior Court* (2017) 582 U.S. 255, 262; *Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062 (*Snowney*).) If the plaintiff meets their initial burden of demonstrating facts justifying the exercise of jurisdiction, then the defendant has the burden of demonstrating the exercise of jurisdiction would be unreasonable. (*Snowney, supra*, 35 Cal.4th at p. 1062.)

A. Minerals Technologies, Inc.

MTI is not at home in California. There is no general jurisdiction over MTI because it is neither incorporated nor headquartered here. Plaintiffs’ showing of specific jurisdiction also fails on the record before the Court. The record establishes a corporate relationship to other entities in the talc supply chain, as opposed to purposeful and claim-related conduct directed at

California by MTI itself. Plaintiffs do not tie MTI's own forum conduct to the talc that allegedly injured Mrs. Estrada. Instead, the connection they offer is mediated through other companies and is, on this record, too attenuated to satisfy due process.

Accordingly, Minerals Technologies, Inc.'s motion to quash is GRANTED, and service of summons on Minerals Technologies, Inc. is quashed.

B. Specialty Minerals, Inc.

The analysis for SMI is materially the same as that for MTI, as is the result. SMI is not at home in California. Plaintiffs again rest on the structure of the corporate family and on generalized participation in a stream of commerce, rather than on purposeful, claim-specific contacts that may be attributed to SMI itself. On the record before the Court, the connection between SMI and Plaintiffs' claims is too attenuated because Plaintiffs fail to link SMI's forum-specific conduct to the harm caused to Mrs. Estrada.

Accordingly, Specialty Minerals Inc.'s motion to quash is GRANTED, and service of summons on Specialty Minerals Inc. is quashed.

C. PTI Union, LLC

PTI Union stands on a different footing than MTI and SMI. Plaintiffs do not assert general jurisdiction, and none exists. PTI Union is a North Carolina limited liability company with its principal place of business in Missouri; it is not "at home" in California. (Noland Decl., ¶ 3; *Daimler, supra*, 571 U.S. at pp. 137–139.) The analysis hinges on whether Plaintiffs have established facts supporting specific jurisdiction.

1. Purposeful Availment

Plaintiffs' meet their burden regarding purposeful availment by way of PT Union's own verified discovery responses in the Alameda County *Maricich* case (*Maricich, Jr. et al. v. Chattem, Inc. et al.* (Super. Ct. Alameda County, 2025, No. 25CV116787). (Stewart Decl., Ex. 1 at pp. 14:1–22, 17:1–18, 10:24–11:23.) These allegations establish that PT Union blended and bottled "100% of the U.S. requirements" of certain Dr. Scholl's products containing talc

from April 2008 through 2019. This represents an estimated 600,000 to 800,000 bottles per year of product understood to be “intended for use in the United States generally. Plaintiffs point to *L.W. v. Audi AG* (2025) 108 Cal.App.5th 95 in arguing that such evidence establishes PT Union’s purposeful availment.

In *L.W. v. Audi AG*, the court concluded that, where a manufacturer supplies a regular, exclusive, and high-volume flow of a nationally distributed consumer product into the United States market, it purposefully avails itself of California, the most populous State into which the product necessarily flows. (*L.W. v. Audi AG, supra*, 108 Cal.App.5th at pp. 114, 118–119.) *L.W.* is an on-point, published decision that is binding on this Court. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455 [“[d]ecisions of every division of the District Courts of Appeal are binding upon ... all the superior courts of this state”].) The First District Court of Appeal has applied *L.W. v. Audi AG* to the same defendant on the same material evidence, denying P.T. Union’s writ petition. (Stewart Decl., Ex. 5.) Furthermore, the decisive facts (600,000 to 800,000 bottles per year of 100% of the U.S. requirements; a contractual obligation to comply “with all applicable United States federal, state, and local laws”) come from PT Union’s own verified interrogatory responses. This is competent evidence satisfying Plaintiffs’ burden.

PT Union’s authorities are distinguishable. *Bombardier* and *Brembo* involved component suppliers with no evidence of any intent to serve California and no control over distribution. (*Bombardier Recreational Products, Inc. v. Dow Chemical Canada ULC* (2013) 216 Cal.App.4th 591, 604–606; *T.A.W. Performance, LLC v. Brembo, S.p.A.* (2020) 53 Cal.App.5th 632, 644–646.) PT Union, by contrast, blended and bottled the finished, labeled retail product and admittedly produced the entire United States supply of the products at issue. Four of the five trial-court orders PT Union relies upon were issued in 2024 before *L.W. v. Audi AG* was decided. (Monroe Decl., Ex. B–E.) In addition, PT Union’s reliance on *Walden v. Fiore* (2014) 571 U.S. 277, 285, is misplaced because Plaintiffs do not rest jurisdiction on Mrs. Estrada’s residence alone, but on Union’s own product distribution directed at the forum.

Plaintiffs satisfy the purposeful availment requirement.

2. Relatedness

Mrs. Estrada declares that she used Dr. Scholl's foot powder in California until approximately 2020; this overlaps with PT Union's 2008–2019 manufacturing period. (Stewart Decl., Ex. 7, ¶¶ 3–8.) No proof of causation is required at the jurisdictional stage because the claim need only relate to the defendant's forum contacts. (*Ford Motor Co. v. Montana Eighth Judicial Dist. Court* (2021) 592 U.S. 351, 361–362; *Jayone Foods, Inc. v. Aekyung Industrial Co.* (2019) 31 Cal.App.5th 543, 559–561.)

Plaintiffs satisfy the relatedness requirement.

3. Reasonableness

Because Plaintiffs meet their burden as to the first two prongs of the specific-jurisdiction analysis, the burden shifts to PT Union to present a “compelling case” that jurisdiction would be unreasonable. (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 476–477.) PT Union submitted no evidence of unfairness or undue burden. (See *Bader v. Avon Products, Inc.* (2020) 55 Cal.App.5th 186, 193.) Given California's strong interest in providing a forum for a resident's claim of a serious in-state injury, the exercise of jurisdiction comports with fair play and substantial justice.

Therefore, PT Union fails to meet its burden regarding reasonableness.

4. Evidentiary Objections

Plaintiffs' objections to the Declaration of Edward T. Noland, Jr., are OVERRULED, except that, where the declaration characterizes the terms of contracts not placed before the Court (¶¶ 20–22), the Court accords those statements little weight. The objections do not affect the result, because Plaintiffs' showing rests on court records and PT Union's own interrogatory admissions rather than on any disputed portion of the Noland Declaration.

In sum and for the reasons stated, the Court finds that Plaintiffs meet their burden of demonstrating purposeful availment and relatedness, and PT Union fails to meet its burden regarding reasonableness.

Accordingly, PTI Union, LLC's motion to quash is DENIED.

III. The Demurrers to the Third Cause of Action

A demurrer tests the legal sufficiency of the pleading. The court accepts as true all material facts properly pleaded, together with all facts that may be judicially noticed; it does not credit contentions, deductions, or conclusions of law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court reads the pleading as a whole, in context, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452.) Fraud must be pleaded with particularity, and a greater degree of particularity is required when the defendant is a corporation. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nevertheless, less particularity is required when the pertinent facts lie within the defendant's knowledge and/or when the claim is of fraudulent concealment, which by its nature cannot be pleaded with the same precision required of an affirmative misrepresentation. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217.)

As particularly relevant here, a demurrer does not lie to a portion of a cause of action. Thus, if a single theory within the fraud count states a claim, the demurrer to the entire cause of action must be overruled, regardless of any shortcomings of the other theories. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Accordingly, the decisive question regarding the four demurrers is the same for each retailer defendant: does the fraudulent-concealment theory state a claim? For each retailer, it does. The Complaint alleges that Mrs. Estrada bought the retailer's own store-brand talc directly, and these allegations supply the seller-buyer relationship from which a duty to disclose arises. (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311.) The Complaint further alleges the retailer's knowledge of the asbestos hazard, the nondisclosure of that hazard, and that Mrs. Estrada was unaware, would have acted differently, and was injured. Because the retailers' alleged level of knowledge differs, the Court discusses those differences below. Nevertheless, the Court finds that the allegations against each are sufficient at the pleading stage.

A. CVS Pharmacy, Inc.

The Complaint adequately pleads the concealment theory against CVS because it directly alleges CVS's knowledge. The Complaint pleads an internal 2009 communication in which a CVS manager concluded that cosmetic talc "is a carcinogen," and it alleges that CVS continued to sell the product without warning. That is sufficient to withstand demurrer.

Accordingly, CVS's demurrer to the third cause of action is **OVERRULED**.

B. Longs Drug Stores, L.L.C.

Longs' demurrer presents a closer question regarding its knowledge of the asbestos hazard. Because the Complaint does not allege an internal admission, the knowledge allegation rests instead on the following: a 1993 lawsuit alleging that Longs' store-brand talc caused "talcosis"; on deposition testimony in that case (at which Longs' counsel was present) linking talcosis to talc containing "either asbestos or silicon"; and on Longs' continued sale of talc for roughly fifteen years thereafter when a cornstarch alternative was available. Longs asserts strong arguments in support of its demurrer, including: talcosis is a different disease; the earlier complaint did not allege asbestos exposure; and the safety data sheets Longs received are alleged to have represented that the talc contained no asbestiform fibers. Nevertheless, those points go to the weight of the proof rather than the sufficiency of the pleading. On demurrer, the Court must accept the alleged fact that Longs knew its talc contained asbestos, as well as the prior suit, the deposition testimony, and the course of continued sales. Taken together at this stage of the proceedings, these allegations support a reasonable inference that Longs had knowledge of the asbestos hazard.

Accordingly, Longs' demurrer to the third cause of action is **OVERRULED**.

C. Walgreen Co.

The concealment theory as against Walgreen is well pleaded and well developed. The knowledge allegations include: a 1972 study reporting asbestos-type fiber exposures from a Walgreen's product by name; Walgreens's knowledge by 1990 that Proposition 65 listed asbestiform-fiber talc as a carcinogen; its knowledge that talc appeared on the California Safe

Cosmetics Act reportable-ingredients list, its reporting of other store-brand products but not its talc products, and its opposition to that statute; and safety data sheets describing the talc as of “unknown toxicity” and “possibly carcinogenic.” These allegations sufficiently support an inference of knowledge and concealment.

Accordingly, Walgreen’s demurrer to the third cause of action is **OVERRULED**.

D. Walmart Inc.

The Complaint’s concealment theory against Walmart is supported by detailed internal records. The Complaint identifies named managers and a Vice President, quotes internal communications addressing talc and its hazards, and alleges a documented decision to continue selling talc before transitioning to cornstarch. Walmart’s principal contention is that its alleged knowledge concerns the industry and another manufacturer’s products rather than confirmed asbestos in Walmart’s own products. That argument goes to weight, not to the sufficiency of the pleading; on demurrer the Court accepts the alleged fact that Walmart knew its products contained asbestos. While the parties debate certain trial-court orders from outside of this county, such orders are not binding on this Court. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.) The Court has decided this demurrer on the Complaint in this action alone.

Accordingly, Walmart’s demurrer to the third cause of action is **OVERRULED**.

E. Remaining Theories and Uncertainty

With respect to all four demurrers, the facts alleged in support of the affirmative-misrepresentation theory are less substantial. The Complaint identifies no specific advertisement, no time or place at which Mrs. Estrada encountered it, and no facts of actual reliance on a particular statement. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519-520.) Similarly, the conspiracy theories allege agreement in conclusory terms. (See *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510-511.) Nevertheless, this does not change the result because a demurrer does not lie to part of a count and the concealment theory alone is sufficient at this stage.

The demurrers on the ground of uncertainty are OVERRULED because each defendant's detailed demurrer shows that it understands the charges well enough to answer. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

IV. The Motions to Strike Punitive-Damages Allegations

Punitive damages may not simply be pleaded by label but instead require specific facts establishing malice, oppression, or fraud. (Civ. Code, § 3294, subd. (a).) As against a corporation, allegations of punitive damages require that the offending conduct have been committed, authorized, or ratified by an officer, director, or managing agent. (Civ. Code, § 3294, subd. (b); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 723–726). A managing agent is one who exercises substantial discretionary authority over decisions that ultimately determine corporate policy. (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566–567 (*Ultramar*).) The motions are confined to the face of the pleading and to judicially noticeable matter, and well-pleaded allegations are taken as true. (Code Civ. Proc., §§ 436, 437.)

As discussed above, the fraud claim survives as to each retailer. The Complaint adequately pleads facts supporting the fraud claim in each instance, and it pleads conscious disregard through a multi-year course of selling talc without warning after notice of the hazard. Thus, the contested question in each motion to strike before the Court is whether the Complaint's allegations satisfy the managing-agent requirement specific to allegations of punitive damages against a corporation, as set forth in Civil Code section 3294, subdivision (b). Because the four moving defendants are separately situated on this question, the Court discusses each in turn.

A. CVS Pharmacy, Inc.

The Complaint's allegations against CVS identify the personnel who received and acted on the 2009 information and sufficiently support the inference that CVS's managing agents repeatedly authorized a policy-level course of conduct over time. (*Grimshaw v. Ford Motor Co.* (1981) 119 Cal.App.3d 757, 812-814.) Whether the individuals in question are managing agents who set corporate policy is a question for a developed record, not for the pleadings.

Accordingly, CVS's motion to strike is DENIED.

B. Longs Drug Stores, L.L.C.

The allegations against Longs present a narrower managing-agent showing because no individual is named. The allegations rest on the *Grimshaw* inference and on the prior suit's allegations that Longs acted through its "officers, directors, and/or managing agents." While such allegations standing alone may not be sufficient, the inference available at the pleading stage from a sustained, decades-long course of conduct is enough to withstand the motion to strike the request for punitive damages.

Accordingly, Longs' motion to strike is DENIED.

C. Walgreen Co.

The managing-agent allegations against Walgreen represent a stronger showing in support of the punitive damages request. The Complaint names a Walgreen's chairman and chief executive officer and alleges he had actual knowledge that talc contained asbestos and was dangerous. A chairman and chief executive officer is an officer and managing agent within the meaning of the statute. The conscious-disregard allegations (i.e., selective non-reporting under the Safe Cosmetics Act, opposition to that statute, the availability of cornstarch, and years of continued sales) are substantial.

Accordingly, Walgreen's motion to strike is DENIED.

D. Walmart Inc.

Walmart presents the most developed conscious-disregard record and a strong, albeit contested, managing-agent allegation. The Complaint names a Vice President alleged to have participated in the decision to use talc rather than cornstarch, together with several senior managers. It also quotes internal communications reflecting that Walmart understood talc to be a carcinogen, declined to change its label, and framed its eventual transition around the litigation risk rather than consumer safety. Walmart's authorities establish that a managing agent must have policy-determining authority. (*Ultramar*, supra, 21 Cal.4th at pp. 566–567;

Morgan v. J-M Manufacturing Co. (2021) 60 Cal.App.5th 1078.) Nevertheless, whether the named Vice President meets that standard is a question of fact the Court cannot resolve on the pleadings. Naming an officer who participated in the decision at issue, reinforced by the *Grimshaw* inference, is sufficient at the pleading stage.

Accordingly, Walmart's motion to strike is DENIED.

V. Conclusion

For the reasons stated, the Court rules as follows:

1. The Court GRANTS the motion to quash brought by Mineral Technologies, Inc. and the motion to quash brought by Specialty Minerals Inc. Service is quashed as to these defendants.
2. The Court DENIES the motion to quash brought by PTI Union, LLC.
3. The Court OVERRULES the demurrers brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.
4. The Court DENIES the motions to strike brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.

Defendants whose motions or demurrers are denied or overruled must file responsive pleadings within 5 court days of the Order.

The Court will prepare the Order.

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